IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
COURT – IV

ITEM No. 5
CA.26/ND/2021 CAA/43/ND/2020
CA(CAA)-03/ND/2020

IN THE MATTER OF:
Priyavrat Infrastructure Pvt Ltd … Applicant/Petitioner
AndMehul FinvestPvt. Ltd.

Order under Section 230-232

Order delivered on 02.02.2021

Coram:
DR. DEEPTI MUKESH,
HON'BLE MEMBER (JUDICIAL)
MS. SUMITA PURKAYASTHA,
HON'BLE MEMBER (TECHNICAL)

PRESENT:
For the Applicant : Mr. Abhishek Nahta, C.A.
For the Respondent :

ORDER

CA-26/ND/2021:

Application filed seeking directions against those Petitioner companies, which are situated out of Delhi-in the state of U.P. and in the state of W.B. and re-fix the date of hearing of this joint petition. Learned Counsel states that in pursuance of the order passed on 03.12.2019, the Hon'ble Principal Bench had allowed the applicant/petitioners to file a joint petition before the NCLT Delhi with respect to all 6 petitioner companies out of which 2 are situated in New Delhi, 3 are situated from state of U.P. and 1 is from state of W.B. Accordingly, 1st motion application was allowed vide order dated 25.02.2020 and 2nd motion petition was filed in time. The order was reserved on 05.03.2020.

Due to the Covid-19 Pandemic lockdown declared, the 2nd motion admission order giving directions were passed on 24.07.2020. Learned Counsel further states that since this was a joint petition but the specific prayer requesting the directions with respect to publication to be done in the State of U.P. and in the state of W.B. in the concerned newspapers were not passed in the 2nd motion order and only the directions were issued with

respect to publication with respect to the companies situated in New Delhi. Hence, this application seeking further direction with respect to publications to be completed in the State of U.P. and in the State of W.B. and also change of the next date of hearing, which was ordered on 01.09.2020. Learned Counsel states that they had filed an application August 2020 for modification of the order passed on 24.07.2020. In the said application the order was not passed as the application was lacking appropriate prayers and liberty was granted to file appropriate application. The concerned Company Secretary incharge for steps to be taken, was on leave and in addition in the State of U.P. and W.B. due to the effect of Pandemic lockdown, the steps could not be taken. Hence, this application seeking the said directions.

Learned PCA undertakes to file appropriate financial statements and other documents required will be filed and copy served to the Regulators.

This application is allowed and the Petitioner Company No. 2 & 6 are directed to publish the appropriate notices in the newspapers Business Standard in English and Hindi. Further Petitioner Nos. 1, 3, & 5 having registered office in State of U.P. are directed to publish the notices in Financial Express in English and Jansatta in Hindi and with respect to the company having registered office the publication in Noida, Business Standard in English and Hindi be done. With respect to Petitioner No. 4 having registered office in W.B, the notice be published in Business Standard English and Aajkaal in Hindi. The next date of hearing will be 19.03.2021.

Application is **allowed** and in terms of above order and disposed of.

Sd/-

SUMITA PURKAYASTHA
MEMBER (TECHNICAL)

Sd/-

DR. DEEPTI MUKESH
MEMBER (JUDICIAL)

Upasana